APPENDIX 'A" TO NOTICE INVITING TENDER (NIT)

1.	Name of work	**REPAIR / MAINT OF LT DISTRIBUTION SYSTEM AND REPAIR MAINT OF PIPE LINE AT AF STN BKT**
2.	Estimated cost	**Rs. 23.00 lakhs (At Par market)**
3.	Period of completion	**180 Days**
4.	Cost of tender documents	**Rs 500.00** in the shape of DD/Bankers cheque from any schedule Bank in favour of GE(AF) Bakshi-Ka-Talab and payable at Lucknow
5.	Website/portal address	www.defproc.gov.in and www.mes.gov.in
6.	Type of contract	The tender shall be based on drawing and specifications IAFW 1779A and GCC (IAFW-2249) with Schedule 'A' (list of items of work) to be priced by contractor. The contractor is required to quote their rates against each items of Schedule 'A'/BOQ.
7.	Information & Details: (a) Bid submission start date (b) Bid submission end date (c) Date of bid opening	Refer Critical dates:
8.	Eligibility Criteria :-	
	(a) For MES enlisted contractors	Contractors shall be enlisted with MES in **Class 'E'** and above and category **a (ii) & b (i)** subject to satisfactory remarks wrt performance in respect of works in hand reflected in work load return (WLR) or any other report circulated by competent engineer authority.
	(b) For contractors not enlisted with MES	(i) Contractors not enlisted with MES should meet the enlistment criteria of **'E' Class and a (ii) & b (i)** category. Contractor with regard to satisfactorily completion of requisite value of works with Central/state Government /Central/state Government PSU / AWHO / AFNHB / CGEWHO / DGMAP ,annual turnover, bank solvency, working capital and other requirements given in para 1.4 and 1.5 of Section 1 of MES Manual on Contracts-2020 as available in all MES formations as well as MES website(www.mes.gov.in) (ii) Not carrying adverse remarks in Work Load Return (WLR) or any other similar report circulated by any competent authority, if already working in MES (iii) Not suspended / debarred / blacklisted (either permanently or temporarily) from participating in any bid or for business dealings by any central/state Department or any Central/state Government or any autonomous Body under Central/state Government or any local body as on the bid submission end date. (iv) Also refer Note-below for all contractors [Sl No 8(C)].
	(C) For All Contractors	(a) Contractor will not be allowed to execute the work by subletting or through power of attorney holder on his behalf to a third party/ another firm except sons/ daughters of proprietor/ partner/ Director and firm's own employees, Director, Project Manager. This shall be subject to certain conditions, which will be prescribed in the NIT forming part of the tender documents. (b) Prior to commencement of electrical work/electrical

		component of works and other works as mentioned in BOQ, copy of valid Electrical License in the name of the contractor or copy of agreement with agency having valid Electrical License along-with Agency's Electrical License shall be submitted by the contractor to the Accepting Officer. In case contractor does not possess valid Electrical License and he intends to get such work executed through agency having valid Electrical License and with whom he has agreement prior approval of such agency shall be got done from GE. Copy of License shall be kept on record by GE for further reference. (c) In addition, Supervisor for execution of electrical works/electrical component of works employed by the contractor shall possess, Supervisor Certificate of Competency issued by concerned State Govt/Union Territory and the worker/tradesmen for execution of electrical works/electrical component of works shall hold necessary Permit issued by concerned State Govt/Union Territory. (d) Reference of Electrical License and details of Supervisor's Certificate of Competency and permit of tradesman employed for execution of electrical work/electrical component of works shall be duly incorporated in the Works Diary and relevant site documents respectively for the whole period during which such works is executed. (e) If the contractor fail to submit the License/permit necessary action as deemed fit shall be taken against the contractor.
9.	Tender issuing and Accepting Officer	GE (AF) Bakshi – Ka – Talab Lucknow-226201 Mail Id :- afbkt4-mes@nic.in
10.	Executing agency	GE (AF) Bakshi – Ka – Talab
11.	Earnest Money	**Rs. 46,000.00** in the form of DD/Bankers cheque from any Scheduled bank in favour of GE(AF) Bakshi-Ka-Talab and payable at Bakshi-Ka-Talab Lucknow.FDR not acceptable

APPENDIX 'A' TO NOTICE INVITING TENDER (NIT)

NOTES :

1. After opening of Cover 1, if the number of MES enlisted contractors of eligible class as well as un-enlisted contractors. If any, fulfilling the other eligibility criteria given in NIT are less than 7 (seven). Applications in respect of contractors one class or two classes (in case of remote and difficult areas to be decided as per list circulated by CE command/ADG) below the eligible class shall also be considered subject to fulfillment of other eligibility criteria given in the NIT. Therefore MES contractors one class below (two classes below in case of remote and difficult areas) may also bid for this tender. However contractors of one/two classes below the eligible class shall not be considered in case their present residual work in hand is more than twice their present tendering limit. Such bidders shall upload in their Cover –I bid details of works in hand showing names of work, names of Accepting Officers, contract amounts, dates of commencement and completion (stipulated) and progress as on bid submission date . These details shall be verified by the Tender Issuing Authority from concerned formations in case bids of such contractors are considered for evaluation.

2. In case after opening of Cover I, the number of MES enlisted contractores of eligible class as well as un-enlisted contractors, if any, fulfilling the other eligibility criteria given in NIT, are 7 (seven) or more, applications of only those one class below the eligible class bidders shall be considered, who have previously completed similar works satisfactorily and are meeting the criteria of up gradation in respect of past experience of completed works (individual work experience and/or average annual turnover as applicable) and financial soundness (solvency/financial soundness and working capital) as per details given in Manual on contracts. Therefore such contractors shall upload the requisite information/documents in the Cover-I.

3. Unlisted contractor shall be considered provided he meets the criteria. Foreign firms shall not be eligible for this tender. However Indian Firms having foreign national /Indian nationals staying abroad /Indian national having taken foreign citizenship, as director(s) shall be considered subject to clearance from the concerned authorities.

4. Contractors enlisted with MES will upload following documents in Cover-I for taking eligibility :-

(a) Application for tender on Firm's letterhead.

(b) Enlistment letter issued by the Registering Authority duly renewed for the cycle period in vogue.

(c) Scanned copy of DD/Bankers Cheque toward cost of tender and EMD instrument in case SSD bond is not signed at the time of registration.

(d) Any other document required as described in this Appendix.

5. Contractors not enlisted with MES will be required to upload following documents in Cover I for checking eligibility.

(a) Application for tender on Firm's letterhead.

(b) Scanned copy of DD/Bankers cheque toward cost of tender and Earnest Money Deposit (EMD) instrument.

(c) Copy of Police Verification report/Police Clearance Certificate/ Character Certificate from the Police Authority of the area where the registered office of the firm is located/notarized copy of valid passport of Proprietor/each Partner/each Director.

(d) All documents required for enlistment in MES for the class mentioned in Para 8(b) above as per Para 1.5 of Section 1 of MES Manual on Contracts 2020.

APPENDIX 'A' TO NOTICE INVITING TENDER (NIT)

(e) Details of works being executed in MES, if any.

(f) Any other documents required as described in this Appendix.

6. Tenders not accompanied by scanned copies of requisite DD/Bankers Cheque towards cost of tender and earnest money (as applicable) in Cover I shall not be considered for validation of 'T' bid and their Financial Bids will not be opened.

7. Contractor should ensure that their original physical DDs and Earnest Money Deposit (EMD) instruments (as applicable) reach the office of Accepting Officer within 5 days of bid submission end date failing which following action shall be taken:-

(a) In case of tenders from an enlisted contractor of MES, where scanned copies of requisite DD/Bankers Cheque towards cost of tender have been uploaded in Cover I but physical copies are not received within the stipulated period, their financial bids (Cover 2) will be opened. However non-submission of physical copies of cost of tender shall be considered as willful negligence of the tender with ulterior motives and such tenders shall be banned from bidding for a period of six months commencing from the date of opening of Financial Bid (Cover 2).

(b) In case of tenders from unenlisted contractor, where scanned copies of requisite DD/Bankers Cheque towards cost of tender have been uploaded in Cover I but physical copies are not received within the stipulated period, their financial bids (Cover 2) will not be opened. Name of such contractors along with complete address shall be circulated for not opening of their bids for a period of six months commencing from the date of opening of Financial bid (Cover 2).

(c) In case of tenders from enlisted and un enlisted contractor, where scanned copies of instruments for Earnest Money Deposit (as applicable) have been uploaded in Cover I but the same are not received in physical form within stipulated period, such tenders shall not qualify for opening of financial bid (Cover 2).

8. Contractor will not be allowed to execute the work by subletting or through power of attorney to a third party/another firm on his behalf, However a contractor can execute the work through power of attorney to sons/daughters/spouse of Proprietor/Partner/Director and firm's own employees, director, project manager **Provided they are not having a separate enlisted firm in MES in their name as Proprietor/Partner /Director**.

9. After opening of Cover I and during its technical evaluation, in case any deficiency is noticed in the documents required to be uploaded by the tenderers as per NIT, a communication in the form of e-mail / SMS/Speed Post etc shall be sent to the contractor to rectify the deficiency within a period of seven days from date of communication, failing which their financial bid (Cover 2) shall not be opened and contractor shall not have any claim on the same .

10. Invitation for e-tender does not constitute any guarantee for validation of Technical bid and subsequent opening of financial bid of any applicant/bidder merely by virtue of enclosing DD. Accepting Officer reserves the right to reject the Technical bid and not to open the financial bid of any applicant/bidder. Technical bid validation shall be decided by the Accepting Officer based on eligibility of the firm as per criteria given in this Appendix. Tenderer/ bidder will be informed regarding non-validation of his Technical bid assigning reasons therefore through tender evaluation report which shall be uploaded on the website. Such tenderer, if desires, may appeal to the next higher Engineer Authority (NHEA) viz HQ CWE (AF) Bareilly on email id afbrlylz3-mes@nic.in with copy to Accepting Officer on email before the scheduled date of opening of Cover 2 . NHEA shall decide the matter within a period of seven working days from the date of receipt of appeal. The decision of the NHEA shall be final and binding. The tenderer /bidder shall not be entitled for any compensation whatsoever for rejection of his bid.

APPENDIX 'A' TO NOTICE INVITING TENDER (NIT)

11. In case an unenlisted contractor is already executing works in MES, he shall not be considered eligible for the subject tender if the total value of such work is more than twice the tendering limit of the MES Class of contractor for which it is eligible. For this purpose, details of the works being executed by such a contractor shall be uploaded in cover-1 of the bid and shall be checked/verified by the Accepting Officer.

12. In case the BOQ is revised through the corrigendum and the bidder has failed to quote on revised BOQ (ie he has quoted on pre revised BOQ), such bid shall be treated as willful negligence by the bidder and his quotation shall be considered non-bonafide. In such cases the lowest tender shall be determined from amongst the valid/ bonafide bids only. Accepting Officer may decide whether to re-tender or consider the lowest bonafide tender for acceptance.

13. Revoking the offer or revising the rates upward or offering voluntary reduction by the lowest tenderer after opening of Cover 2 shall be considered as a willful default. For this default a penalty of an amount equal to Earnest Money shall be levied. In case of an unenlisted tenderer, Earnest Money deposited by him shall be forfeited. In case of MES enlisted tenderer having deposited the Standing Security Bond , an amount equal to the earnest money stipulated in the NIT shall be notified to the tenderer for depositing through MRO and consideration of such tenderer in tender evaluation for future works shall remain suspended till the afore mentioned amount is deposited in the Government Treasury. No other disciplinary/administrative action shall be taken against such tenderers. In such a situation, the next lowest offer shall not be considered for acceptance . Instead, retendering shall be resorted to in a transparent and fair manner and the defaulting tenderer and his related firm if any , shall not be eligible for this tender in second call or subsequent calls.

14. Tender to related firms shall not be issued simultaneously. Firms shall be termed as related if Proprietor/one or more Partners/Directors are common. Decision of Accepting Officer on issue/deny the tender to any one of the related firms shall be final and binding.

Signature of contractor

AGE (Contract)
For Accepting Officer

File No :- 8769/BKT/E8
GE (Air Force) Bakshi-ka-Talab
PIN 901109

Signature Not Verified
Digitally signed by YOGESH SAHDEO MESHRAM
Date: 2024.10.16 18:16:58 IST
Location: Ministry of Defence-MES